

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Scott Carlton	Team: Squad #16	CCRB Case #: 201801462	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 01/12/2018 4:12 PM, Wednesday, 01/31/2018 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/12/2019	Precinct: 70
Date/Time CV Reported Thu, 02/22/2018 11:40 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/22/2018 11:40 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Gary Marchand	01269	914855	070 PCT
2. POM John Baggs	21920	959467	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Kim Wallace	13769	936616	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM John Baggs	Abuse: Police Officer John Baggs threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . POM John Baggs	Force: Police Officer John Baggs used physical force against § 87(2)(b)	B . Unfounded
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On February 22, 2018, § 87(2)(b) reported the following complaint by telephone to the CCRB (Board Review 01).

On January 12, 2018 at approximately 4:12 p.m., § 87(2)(b) entered § 87(2)(b) in Brooklyn in order to pick up his daughter, § 87(2)(b) from school. School officials and security personnel told § 87(2)(b) that he could not pick up § 87(2)(b) and had to leave the premises. § 87(2)(b) refused to leave and called 911. Sgt. Gary Marchand and PO John Baggs of the 70th Precinct responded. PO Baggs approached § 87(2)(b) as he said, “You’re gonna go to jail. You have to leave” (**Allegation A: Abuse of Authority, unsubstantiated**). PO Baggs subsequently told § 87(2)(b) “If you don’t leave, you’re going to jail,” and said that § 87(2)(b) was either going to go to jail or be physically removed from the premises (**Allegation A, continued**). PO Baggs placed his hand around § 87(2)(b)’s upper arm and pushed him multiple times in the direction of the stairwell (**Allegation B: Force, unfounded**). No arrests were made or summonses issued.

§ 87(4-b), § 87(2)(g)

School surveillance video of this incident was obtained by the investigation. The original video files are denoted as Board Review 02, 03, 04, 05, and 06. These videos are summarized in Board Review 17. § 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer John Baggs threatened to arrest § 87(2)(b)

§ 87(2)(g)

In his verified statement, § 87(2)(b) stated that, as soon as PO Baggs arrived at the scene, he approached § 87(2)(b) in the school hallway and said to him, “You’re going to jail. You have to leave” (Board Review 08). PO Baggs was tall and “hovered” in the face of § 87(2)(b) which coupled with his verbal remark, made § 87(2)(b) feel threatened. § 87(2)(b) explained that he had a right to see § 87(2)(b) § 87(2)(b). PO Baggs responded, “If you don’t leave, you’re going to jail.” PO Baggs told § 87(2)(b) that he was going to go to jail or be physically removed from the premises.

PO Baggs said, in his statement at the CCRB, that Sgt. Marchand primarily spoke to § 87(2)(b) while he stood to Sgt. Marchand’s side (Board Review 09). PO Baggs did not recall if he spoke to § 87(2)(b) at all. PO Baggs did not believe that any discussion of arrest took place during the incident, and PO Baggs did not threaten to arrest § 87(2)(b) though § 87(2)(b) was trespassing, for which he could have been arrested.

In his statement to the CCRB, Sgt. Marchand stated that he believed his partner of the time was PO Kim Wallace (Board Review 10). Sgt. Marchand did not observe that § 87(2)(b) committed any actions for which he could be arrested, though if § 87(2)(b) continued to refuse to leave the premises, he could have been arrested for trespassing. To Sgt. Marchand's knowledge, his partner did not say, "You're gonna go to jail." To Sgt. Marchand's knowledge, his partner did not say, "If you don't leave, you're going to go to jail," or say that § 87(2)(b) was going to jail or he would be physically removed from the premises.

In a telephone statement to the CCRB, § 87(2)(b) the § 87(2)(b) at the time of the incident, stated that she did not remember that any officer mentioned arrest, jail, or that § 87(2)(b) could be arrested (Board Review 11).

The video footage obtained does not contain audio, and therefore does not confirm whether or not PO Baggs threatened § 87(2)(b) given the verbal nature of the allegation (Board Review 07).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation (B) Force: Police Officer John Baggs used physical force against § 87(2)(b)

§ 87(2)(b) stated that, immediately prior to the moment when he walked out of the building, PO Baggs grabbed § 87(2)(b) on the back of his upper right bicep with one hand and used his fingers to grip fully around § 87(2)(b)'s arm (Board Review 08). § 87(2)(b) stood three to four feet from the stairwell that led outside of the building. PO Baggs pushed § 87(2)(b) three to four times by the arm in the direction of the stairwell. As a result, § 87(2)(b) lost his footing and moved toward the stairwell. PO Baggs did not release his grip on § 87(2)(b)'s arm until he reached the top of the stairwell. PO Baggs primarily used one hand as he pushed § 87(2)(b) by the arm, but occasionally used his other hand as well to push against § 87(2)(b)'s upper right arm with greater force. § 87(2)(b) did not suffer any injuries as a result, though he felt pain due to a preexisting lumbar condition.

PO Baggs, Sgt. § 87(2)(b) [sic] and § 87(2)(b) denied that PO Baggs made physical contact with § 87(2)(b) (Board Review 09, 10, and 11). § 87(2)(b) stated that § 87(2)(b) walked out of the building of his own accord after he was shown paperwork which indicated that he did not have custody of § 87(2)(b) § 87(2)(b) (Board Review 11).

The video clip below shows the moment when § 87(2)(b) walks to the staircase at the end of the hallway (Board Review 07). PO Baggs stands approximately two feet from § 87(2)(b) throughout the clip and does not make physical contact with § 87(2)(b). § 87(2)(b) walks toward the staircase voluntarily.



201801462_20180619_1634_DM.mp4

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is therefore recommended that **Allegation B** be closed as **unfounded**.

§ 87(4-b), § 87(2)(g)
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Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three CCRB complaints and has been named as a victim in 43 allegations (Board Review 14).
 - § 87(2)(b)
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§ 87(2)(b)
- PO Baggs has been a member-of-service for two years and this is the first CCRB complain to which he had been a subject.
- Sgt. Marchand has been a member of service for 23 years and has been a subject in two CCRB complaints and three allegations, none of which were substantiated. § 87(2)(b)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was deemed unsuitable for mediation due to the alleged physical force.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- A FOIL request sent to the Comptroller's Office confirmed that a Notice of Claim was filed by [§ 87(2)(b)] or [§ 87(2)(b)] [§ 87(2)(b)] is seeking payment as a result of his claim that members of the NYPD engaged in unjustified physical force and threats of arrest (Board Review 16).

Squad No.: 16

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____